



2024:CGHC:32179

NAFR

HIGH COURT OF CHHATTISGARH AT BILASPUR

CR No. 16 of 2023

Dhirendra Vishwakarma S/o Shri Jawahar Lal Vishwakarma, Aged About 43 Years R/o. Ward No.09, Khongapani, Police Station - Jhagrakhand, District Koriya Chhattisgarh. **... Applicant**

versus

1 - Rasheed Hasmi S/o Shri Abdul Majeed, Aged About 43 Years R/o. Ward No.09, Khongapani, Police Station - Jhagrakhand, District Koriya Chhattisgarh

2 - Guljari Lal Nanda, S/o Shri Paras Nath Nanda, Aged About 30 Years R/o. Ward No.09, Khongapani, Police Station - Jhagrakhand, District Koriya Chhattisgarh

3 - The Election Officer, Khongapani Election Area, District Koriya Chhattisgarh

... Non-applicants

For Applicant : Mr. Rahul Mishra, Advocate
For Non-Applicants : Mr. Khulesh Sahu, Advocate

Hon'ble Shri Justice Rakesh Mohan Pandey

Order on Board

23.08.2024

1) The applicant has filed this Civil Revision with the following prayer:-

“The Hon’ble Court may kindly be pleased to allow this revision and set-aside the impugned order dated 27.10.2022 (Annexure A-1), passed by the learned District Judge in Misc. Civil Case No. 09/2020, in the interest of justice.”

2) Facts of the present case are that the applicant - Dhirendra Vishwakarma, and non-applicants No. 1 & 2, namely, Rasheed Hasmi and Gujari Lal Nanda contested an election for the Office of Councilor of Ward No. 9 of Nagar Panchayat Khongapani. The election was held on 21.11.2019 and the result was declared on 24.12.2019. The applicant herein was elected as Councilor for Ward No. 9. Thereafter, the Non-applicant No.1/Election Petitioner - Rashid Hashmi filed an Election Petition under Section 20 of the Chhattisgarh Municipalities Act, 1961 (for short, the Act, 1961) before the District Judge, Baikunthpur, District Koriya, *inter alia* on the ground that the returned candidate failed to disclose his criminal antecedents particularly the cases in which he was convicted/acquitted/discharged. He failed to disclose his criminal antecedents in affidavit Form-3(A) as required under Rule 25-A of the Chhattisgarh Nagarpalika Nirvachan Niyam, 1994 (for short, the Rules, 1994). The returned candidate filed a reply to the election petition and admitted the fact that he was acquitted prior to the date of the election, therefore, he left that column blank. It is also stated in para 6 of the reply that at the time of submission of the affidavit, no criminal case was pending, therefore, that column was not filled up. The returned candidate moved an application under Order 7 Rule 11 of the Code of Civil Procedure (for short, CPC) on the ground that in the Act, 1961 particularly, under Sections 20 and 22 there is no provision to furnish details of the criminal antecedents. The application was replied to by the election petitioner. The learned trial Court vide order dated 27.10.2022 rejected the application moved by the returned candidate and fixed the case for evidence on 14.11.2022. The returned candidate filed civil revision on 17.01.2023 and an interim order was passed in his favor on 02.08.2023.

- 3) Learned counsel appearing for the applicant submitted that in an identical matter where similar allegations were made, an application under Order 7 Rule 11 of CPC rejected by the Learned Tribunal was challenged by filing Civil Revision No. 4 of 2023 and the same was allowed. He further submitted that in the Act, 1961, there is no provision to furnish the details of the criminal antecedents, particularly in Section 22 of the Act, 1961. He also submitted that on the ground of non-disclosure of the criminal antecedents, the election petition cannot be filed and the election of the returned candidate cannot be declared null and void. In support of his arguments, he placed reliance on the following judgments/orders : ***Krishanmoorthy v. Sivakumar and others*** reported in **(2015) 3 SCC 467**; ***Ravi Namboothiri v. K. A. Baiju*** reported in **AIR ONLINE 2022 SC 883**.

He further argued that the Co-Ordinate Bench has already decided on a similar issue and dismissed the election petition on the ground that there is no need to disclose the criminal antecedents, wherein the returned candidate was discharged or acquitted. He also argued that if this Court has a different view, in such a situation, the matter may be referred to the larger Bench. In this regard, he placed reliance on the judgment passed in the matter of ***Bir Bajrang Kumar v. State of Bihar*** [AIR 1987 SC 1345] and also referred to Rule 32 of the Chhattisgarh High Court Rules, 2007.

- 4) He contended that there is no provision to furnish criminal antecedents in the Act, 1961, in that situation, the Act would prevail and in support thereof, he placed reliance on the matter of ***Kailash vs Nanhku & Ors*** [2005 (4) SCC 480] para-27.
- 5) On the other hand, the learned counsel appearing for the respondents would oppose and submit that pursuant to the decision taken by the

Hon'ble Supreme Court in the matter of ***Union of India v. Association For Democratic Reforms and another, (2002) 5 SCC 289*** while emphasizing the scope of Article 91 (A) of the Constitution of India in para 46(7) held that voter has a right to know antecedents including criminal past of his candidate contesting election for MP or MLA. He further submitted that in the catena of judgments, the Hon'ble Supreme Court emphasized compliance with the aforesaid decision. He also submitted that pursuant to those judgments, the Rules, 1994 have been amended and Rule 25-A was inserted in the Rules, 1994 on 28.03.2018, which says that an affidavit to be filed along with nomination paper furnishing information relating to whether the candidate is convicted/discharged/acquitted in any criminal case or he was accused in any criminal case. He argued that the returned candidate failed to disclose the cases in which he was discharged or acquitted.

He further argued that the facts of the present case are distinguishable from the facts of CR No. 4 of 2023 as in that case, Rule 25-A of the Rules, 1994 was not brought to the notice of the Co-ordinate Bench. He emphasized that when the facts are distinguishable, it would not be necessary to refer the matter to the larger bench. He submitted that Rule 25-A of the Rules, 1994 was inserted pursuant to the direction issued by the Hon'ble Supreme Court and similar provisions were inserted in the Representation of the People Act, 1951 (for short, the Act, 1951) as well as the Rules made thereunder. Thus, he argued that the present civil revision is liable to be dismissed.

- 6) I have heard learned counsel appearing for the parties and perused the documents available on the record with utmost circumspection.

7) From the perusal of the written statement filed by the returned candidate before the learned District Judge/Tribunal, it is apparent that he himself has admitted that he could not furnish the information with regard to the criminal antecedents. The returned candidate moved an application under Order 7 Rule 11 of the CPC before the learned Tribunal and the same was rejected.

8) In the matter of **Association For Democratic Reforms (supra)**, the Hon'ble Supreme Court while emphasizing the scope of Article 91 (A) of the Constitution of India in para 46(7) held that voter has a right to know antecedents including criminal past of his candidate contesting election for MP or MLA. In para-48 the following order was passed:-

“48. The Election Commission is directed to call for information on affidavit by issuing necessary order in exercise of its power under Article 324 of the Constitution of India from each candidate seeking election to Parliament or a State Legislature as a necessary part of his nomination paper, furnishing therein, information on the following aspects in relation to his/her candidature:-

(1) Whether the candidate is convicted/acquitted/ discharged of any criminal offence in the past-if any, whether he is punished with imprisonment or fine?

(2) Prior to six months of filing of nomination, whether the candidate is accused in any pending case, of any offence punishable with imprisonment for two years or more, and in which charge is framed or cognizance is taken by the Court of law. If so, the details thereof.

(3) The assets (immovable, movable, bank balances etc.) of a candidate and of his/her spouse and that of dependants.

(4) Liabilities, if any, particularly whether there are any over dues of any public financial institution or Government dues.

(5) The educational qualifications of the candidate.”

9) Pursuant to the judgment passed in the matter of **Association For Democratic Reforms (supra)**, by way of an amendment, Section 33A was inserted in the Representation of People Act, 1951 which reads as under:-

33A. Right to information.

(1) A candidate shall, apart from any information which he is required to furnish, under this Act or the rules made thereunder, in his nomination paper delivered under sub-section (1) also furnish the information as to whether-

(i) he is accused of any offence punishable with imprisonment for two years or more in a pending case in which a charge has been framed by the court of competent jurisdiction;

(ii) he has been convicted of an offence [other than any offence referred to in sub-section (1) or sub-section (2), or covered in sub-section (3), of section 8] and sentenced to imprisonment for one year or more.

(2) The candidate or his proposer, as the case may be, shall, at the time of delivering to the returned officer the nomination paper under sub-section (1) of section 33, also deliver to him an affidavit sworn by the candidate in a prescribed form verifying the information specified in sub-section (1).

(3) The returned officer shall, as soon as may be after the furnishing of information to him under sub-section (1), display the aforesaid information by affixing a copy of the affidavit, delivered under sub-section (2), at a conspicuous place at his office for the information of the electors relating to a constituency for which the nomination paper is delivered.]

Subsequently, Section 33B of the Act, 1951 was struck down by the Supreme Court as ultra vires by virtue of the judgment passed in ***People's Union for Civil Liberties Versus Union of India*** reported in ***AIR 2003 SC 2263***.

10) According to the law laid down by the Hon'ble Supreme Court and the insertion of rules in this regard, the contesting candidate/s has/have to furnish or disclose his/her criminal antecedents pending or disposed of in an affidavit. The candidate cannot leave the column blank.

11) The State Legislature, taking into consideration the law laid down by the Hon'ble Supreme Court in the aforesaid judgment, inserted Rule 25-A in the Rules, 1994 vide notification dated 28.03.2018 and the same is reproduced as under:-

Section 25-A of Chhattisgarh Nagarpalika Nirvachan Niyam, 1994 read as under:-

“25-A Affidavit to be filled along with nomination paper-

(1) Under the provision of sub rule (1) of rule 25, every candidate [and concerned mayor/president in case of recall from his post], who is submitting his nomination for election of Mayor or Councilor of Municipal Corporation or President or Councilor of Municipal council or president or Councilor of Nagar panchayat before the returning officer shall, necessarily enclose an affidavit sworn before Magistrate of first class or notary in form 3-A.

(2) Every candidate shall declare information relating to :-

(i) Whether he is convicted/discharge/acquitted in any criminal case in the past or he is accused in any pending criminal case ? If so, the details thereof;

x x x

xxx

xxx”

- 12) From a plain reading of this provision, it is clear that an affidavit has to be filed along with a nomination paper by a candidate who is submitting his/her nomination form for the election of the office of Councilor. Rule 25-A(2) of the Rules, 1994 says that every candidate shall declare the criminal cases in which he has been convicted/discharged. Therefore, it is imperative on the part of the candidate contesting an election to furnish that information.
- 13) In the present case, the returned candidate himself admitted that due to a *bonafide* mistake, he could not furnish the information and left blank that particular column.
- 14) In CR No. 4 of 2022, though the facts were similar, Rule 25-A of the Rules, 1994 was not brought to the notice of the Co-Ordinate Bench. Rule 25-A of the Rules, 1994 makes it mandatory to disclose criminal antecedents by the contesting candidate and such a candidate has to file an affidavit disclosing information sought along with the nomination form. Therefore, the facts of the present case are slightly different from the facts of the case cited by the applicant. Thus, in the opinion of this Court, this case cannot be referred to the larger Bench as Rule 25-A of the Rules, 1994 was not brought to the notice of the Co-Ordinate Bench.

15) The principle of *sub silentio* would attract in the present case. This principle comes into play if a particular law has not been brought to the notice of the Court or the same has not been perceived. This issue is no more res integra, the Hon'ble Supreme Court in the matter of **State of U.P. Vs. Synthetics and Chemical Ltd., (1991) 4 SCC 139** has dealt with this issue in para 41 and held under:-

41. Does this principle extend and apply to a conclusion of law, which was neither raised nor preceded by any consideration. In other words can such conclusions be considered as declaration of law? Here again the English courts and jurists have carved out an exception to the rule of precedents. It has been explained as rule of sub-silentio. "A decision passes sub-silentio, in the technical sense that has come to be attached to that phrase, when the particular point of law involved in the decision is not perceived by the court or present to its mind." (Salmond on Jurisprudence 12th Edn., p. 153). In Lancaster Motor Company (London) Ltd. v. Bremith Ltd. [(1941) 1 KB 675, 677 : (1941) 2 All ER 11] the Court did not feel bound by earlier decision as it was rendered 'without any argument, without reference to the crucial words of the rule and without any citation of the authority'. It was approved by this Court in Municipal Corporation of Delhi v. Gurnam Kaur. [(1989) 1 SCC 101] The bench held that, 'precedents sub-silentio and without argument are of no moment'. The courts thus have taken recourse to this principle for relieving from injustice perpetrated by unjust precedents. A decision which is not express and is not founded on reasons nor it proceeds on consideration of issue cannot be deemed to be a law declared to have a binding effect as is contemplated by Article 141. Uniformity and consistency are core of judicial discipline. But that which escapes in the judgment without any occasion is not ratio decidendi. In B. Shama Rao v. Union Territory of Pondicherry [AIR 1967 SC 1480 : (1967) 2 SCR 650 : 20 STC 215] it was observed, 'it is trite to say that a decision is binding not because of its conclusions but in regard to its ratio and the principles, laid down therein'. Any declaration or conclusion arrived without application of mind or preceded without any reason cannot be deemed to be declaration of law or authority of a general nature binding as a precedent. Restraint in dissenting or overruling is for sake of stability and uniformity but rigidity beyond reasonable limits is inimical to the growth of law.

16) In the matter of **Krishanmoorthy v. Sivakumar and others** reported in **(2015) 3 SCC 467**, it is held that the disclosure of criminal antecedents

of a candidate, especially, pertaining to heinous or serious offence or offences relating to corruption or moral turpitude at the time of filing of nomination paper as mandated by law is a categorical imperative, in para 94 the Hon'ble Apex Court held as under:-

“94. In view of the above, we would like to sum up our conclusions:

94.1. Disclosure of criminal antecedents of a candidate, especially, pertaining to heinous or serious offence or offences relating to corruption or moral turpitude at the time of filing of nomination paper as mandated by law is a categorical imperative.

94.2. When there is non-disclosure of the offences pertaining to the areas mentioned in the preceding clause, it creates an impediment in the free exercise of electoral right.

94.3. Concealment or suppression of this nature deprives the voters to make an informed and advised choice as a consequence of which it would come within the compartment of direct or indirect interference or attempt to interfere with the free exercise of the right to vote by the electorate, on the part of the candidate.

94.4. As the candidate has the special knowledge of the pending cases where cognizance has been taken or charges have been framed and there is a non-disclosure on his part, it would amount to undue influence and, therefore, the election is to be declared null and void by the Election Tribunal under Section 100(1)(b) of the 1951 Act.

94.5. The question whether it materially affects the election or not will not arise in a case of this nature.”

17) In the present case also, the returned candidate failed to disclose the criminal antecedent in which he was discharged or acquitted and those cases were within the knowledge of the returned candidate, therefore, non-disclosure of the criminal cases would materially affect the election.

18) In the matter of **Ravi Namboothiri v. K. A. Baiju** reported in **AIR ONLINE 2022 SC 883**, the Hon'ble Supreme Court in paras 33, 36 & 38 held as under:-

33. If the false making of an instrument is a common ingredient of “faking” and “forgery”, the nondisclosure in Form No.2A of the conviction suffered by the appellant in

the past, may certainly come within Section 102(1)(ca). The reason for this is that a person having criminal antecedents, poses himself to be one without any such antecedent, when he fails to make a true disclosure. In law, he passes off or comes out as a person without any criminal antecedent. Therefore, the failure to make a true disclosure in Form 2A, regarding the past conviction, will certainly come within the meaning of the word 'fake', mentioned in clause (ca) of subsection (1) of Section 102.

34. *It may be true, as contended by Shri Ragenth Basant, learned counsel for the appellant that Rule 6, in terms of which Form No.2A has been drafted, is a subordinate legislation, which cannot go beyond the scope of Section 52(1A). But unfortunately for the appellant, Rule 6 is not under challenge on the ground that it is ultra vires the Act. Therefore, the appellant cannot now be heard to contend that Rule 6 cannot travel beyond or enlarge the scope of Section 52(1A).*

35. *If not for Rule 6 and Form No.2A, it is possible to accept the argument that the requirement under Section 52(1A) is limited to "the disclosure of involvement in a criminal case at the time of filing of the nomination". At the time of filing of the nomination, the appellant was not involved in any criminal case.*

36. *We do not agree with the argument of Shri P.V. Surendranath, learned senior counsel for respondent No.1 that the phrase "involvement in a criminal case" would include past conviction also, especially when Section 52(1A) uses the rider "at the time of filing of the nomination".*

37. *In our considered view, the words "involvement in a criminal case at the time of filing of the nomination" would only mean (i) cases where a criminal complaint is pending investigation/trial; (ii) cases where the conviction and/or sentence is current at the time of filing of the nomination; and (iii) cases where the conviction is the subject matter of any appeal or revision pending at the time of the nomination.*

38. *Therefore, in the absence of Rule 6 and Form No.2A we could have easily concluded that the case of the appellant will not be covered by Section 52(1A) as he was not involved in any criminal case on the date of the nomination. But Rule 6 and Form No.2A taken together with what the law means to be "fake", makes things difficult for the appellant."*

19) In the case cited above, the candidate had to furnish information with regard to pending criminal cases and there was no provision to furnish information with regard to cases pending at the time of filing of nomination whereas in the present case Rule 25A of Rules, 1994 makes it imperative to provide information regarding criminal cases in which a

candidate has been discharged or acquitted. Though the returned candidate was discharged/acquitted by the competent criminal court in the year 2006, the details about the same were required to be furnished in the affidavit along with the nomination form.

20) It is true that in the Act there is no provision with regard to disclosure of the criminal antecedent but in the Rules, the same was inserted in the year 2018 and the returned candidate has not challenged the Rules framed in the year 2018, therefore, the submission made by Mr. Mishra that the Act would prevail is misplaced.

21) It has been informed that the election petition before the learned Court below is still pending and the election petitioner as well as the returned candidate have to prove their case by leading evidence; thus, at this stage, no case is made out for interference as application moved by the returned candidate under Order 7 Rule 11 of the CPC has been rejected. Consequently, the present Civil Revision is liable to be and is hereby **dismissed**.

22) As the present Civil Revision has been pending since 17.01.2023, the learned tribunal is requested to make all endeavours to conclude the proceedings expeditiously.

Sd/-
(Rakesh Mohan Pandey)
Judge